



GRETCHEN WHITMER
GOVERNOR

STATE OF MICHIGAN
DEPARTMENT OF
ENVIRONMENT, GREAT LAKES, AND ENERGY
GAYLORD DISTRICT OFFICE



LIESL EICHLER CLARK
DIRECTOR

October 22, 2020

VN No. VN-011108

VIA EMAIL

Mr. Jeffrey Dietlin, Director of Utilities
City of Cadillac
200 North Lake Street
Cadillac, Michigan 49601

Dear Mr. Dietlin:

SUBJECT: Industrial Pretreatment Program (IPP) Reconnaissance Evaluation
National Pollutant Discharge Elimination System (NPDES)
Individual Permit No. MI0020257
Designated Name: Cadillac WWTP

On September 25, 2020, staff of the Department of Environment, Great Lakes, and Energy (EGLE), Water Resources Division (WRD), conducted an evaluation of the Cadillac Wastewater Treatment Plant (WWTP), located at 1121 Plett Road, Cadillac, Michigan 49601 (Control Authority). The purpose of the evaluation was to determine compliance with Part 31, Water Resources Protection, of the Natural Resources and Environmental Protection Act, 1994 PA 451, as amended (NREPA); the Part 23 Rules of the Michigan Administrative Code; the federal pretreatment regulations; and NPDES Permit Number MI0020257 (NPDES Permit), issued August 30, 2019, effective September 1, 2019.

The Industrial Pretreatment Program (IPP) Reconnaissance Evaluation included a review of the Control Authority's file on the Categorical Industrial User (CIU) AAR Rinse Tank (AAR) and an interview with Mr. Douglas Langworthy of the City of Cadillac. The records reviewed included the current permit issued by the Control Authority to AAR (issued November 28, 2018 (AAR Permit)); the Total Toxic Organics (TTO) laboratory report dated August 25, 2020, submitted by AAR to the Control Authority; laboratory reports for the Control Authority sampling of AAR conducted from December 2019 to August 2020; notifications of violation of the permit effluent limitations sent by the Control Authority to AAR from January 30, 2020 until September 8, 2020; and the Control Authority's inspection report dated November 25, 2019.

The review of the AAR file identified the following items as deficiencies:

1. The AAR Permit refers to general discharge prohibitions available under Chapter 23 in the Cadillac City Code. A review of the Cadillac City Code available on the City of Cadillac Web site showed that Chapter 23 does not exist under the City Code. The Control Authority must have legal authority to enforce the requirements of the IPP. Failure to provide adequate legal authority, including general discharge prohibitions, is a violation of Part 23 Rules and the NPDES Permit.

Required Action: The Control Authority must review the City of Cadillac's sewer use ordinance to ensure legal authority exists to enforce the IPP. If legal authority exists it is recommended the citation listed in the permit is corrected.

2. The effluent limits as provided in the AAR Permit did not include all the relevant Categorical limits. The Categorical Pretreatment Standards under 40 CFR Part 433, Metal Finishing Point Source Category (Part 433), include limits on the discharge of Silver which was not included as a parameter in the AAR Permit. The Part 433 Categorical Pretreatment Standards also include both a one-day maximum concentration limit and a monthly average maximum concentration limit for all parameters, except TTO. The permit issued to AAR included only a 30-day average concentration limit for all parameters. The AAR Permit must include effluent limits based on all applicable general pretreatment standards, Categorical Pretreatment Standards, local limits, and state and local law. The most stringent limit must always be applied. Failure to provide the appropriate federal and local limits in an Industrial User's permit is a violation of Part 23 Rules and the NPDES Permit.

Required Action: The Control Authority must review the AAR Permit effluent limits and modify the permit to include all applicable limits. Where multiple limits exist for the same parameter the most stringent limit must be applied.

3. The AAR Permit did not identify any sampling locations. The AAR Permit includes effluent limitations based on Categorical Pretreatment Standards and local limits. Categorical limits apply at the end of the regulated process, whereas local limits apply at the discharge to the collection system. Based on the AAR Permit, it is not possible to determine if samples are being collected at an appropriate point(s) to demonstrate compliance with the AAR Permit effluent limits. Failure to identify sampling locations in Significant Industrial User's (SIU) Permit is a violation of Part 23 Rules and the NPDES Permit.

Required Action: The permit must be modified to identify the point(s) where samples are required to be collected to demonstrate compliance with the effluent limits. The sample locations must be appropriate to the type of limit being monitored, i.e., Categorical limits must be applied at the end of the regulated process or end of treatment. Where samples are collected after regulated Categorical wastewater has mixed with non-regulated wastewater the Combined Wastestream Formula (CWF) must then be applied.

4. The AAR Permit gives the permittee the option to conduct sampling and analysis and report the results to the Control Authority. However, the AAR Permit does not include all the required reporting elements to be fulfilled if the AAR elects to conduct self-monitoring testing. Failure to include the required reporting elements in an SIU Permit is a violation of the Part 23 Rules and the NPDES Permit.

Required Action: The permit must be modified to include the following under the self-monitoring requirements: a requirement to submit a report on the concentration of pollutants in the effluent to the Control Authority during the months of December and June, unless required more frequently in the Pretreatment Standard or by the Control Authority; a requirement to notify the Control Authority of non-compliance with the effluent limit within 24 hours of becoming aware of the violation; a requirement to repeat

sampling and report the analytical results to the Control Authority within 30 days of becoming aware of a violation.

5. A review of the AAR Permit showed that the permit did not include a requirement to immediately notify the Control Authority of any discharge with the potential to cause problems to the Publicly Owned Treatment Works (POTW). Failure to include a statement requiring notification to the Control Authority of discharges that may cause harm in an SIU's Permit is a violation of the Part 23 Rules and the NPDES Permit.

Required Action: The permit must be modified to require the permittee to immediately notify the Control Authority of any discharge with the potential to cause problems to the POTW, including slug loadings.

6. A review of the AAR Permit showed that a monthly report of flow data was required to be submitted to the Control Authority by the fourth day of the following month. The Permit did not state the minimum information that must be included in this report. Failure to list all required reporting elements in an SIU's Permit is a violation of the Part 23 Rules and the NPDES Permit.

Required Action: The AAR Permit must be modified to require the permittee to report both daily average and daily maximum flow, in gallons per day. This information must be reported for all regulated process wastestreams and any other wastestreams, as needed, if applying the CWF.

7. During the file review and follow up correspondence with Mr. Langworthy, it was found that AAR had not submitted a monthly report of flow data to the Control Authority as required by the AAR Permit since it was last requested following the September 24, 2019 IPP Reconnaissance Evaluation. Failure to submit a required report within 30 days after the due date constitutes Significant Noncompliance (SNC). The IPP Annual Report submitted to EGLE indicated there was no SNC with reporting requirements for AAR. Failure to provide an adequate annual report is a violation of Part 23 Rules and the NPDES Permit.

Required Action: The Control Authority must respond to failure to submit required reports according to the approved Enforcement Response Plan (ERP). In cases where failure to submit a report constitutes SNC this must be reported to EGLE in the Industrial Pretreatment Annual Report and a public notice of SNC must be published in a newspaper of general circulation annually for CIUs.

8. The review of the AAR Permit showed that a requirement to use approved methods when analyzing samples to determine compliance with the permit limits was not included. The AAR Permit must require the use of analytical methods approved under 40 CFR Part 136, Guidelines Establishing Test Procedures for the Analysis of Pollutants (Part 136). Sample analysis using methods not approved under Part 136 is not valid for compliance. Failure to include language in an SIU's Permit requiring the use of approved methods is a violation of Part 23 Rules and the NPDES Permit.

Required Action: The AAR Permit must be modified to require the Industrial User to use methods approved under Part 136 when analyzing samples to demonstrate compliance with the permit effluent limits.

9. The review of the AAR Permit showed the permit did not include a requirement for flow-proportional composite sampling. For samples obtained through 24-hour composite sampling, the sample must be a flow-proportional composite, unless otherwise authorized and documented by the Control Authority to be representative of the SIU's discharge. Failure to require representative sampling of the SIU's discharge is a violation of Part 23 Rules and the NPDES Permit.

Required Action: The AAR Permit must be modified to include a requirement to use flow proportional sampling where a 24-hour composite sample is collected, unless an alternative method, such as a time-proportional 24-hour composite, is authorized. If an alternative sample method is authorized by the Control Authority, the sample must be representative of the discharge and the justification for the decision to allow the alternative sampling method must be documented in the Industrial User file.

10. The Total Toxic Organics (TTO) monitoring report dated August 25, 2020 does not include monitoring results for Dichloroethylene. The AAR Permit requires monitoring for Dichloroethylene twice annually. No compliance action for this reporting deficiency was noted in the Industrial User file. Failure to enforce the Permit's monitoring requirements is a violation of Part 23 Rules and the NPDES Permit.

Required Action: The Control Authority must develop and implement procedures to review reports submitted by Industrial Users for the required elements. The Control Authority must respond to reporting deficiencies according to the ERP in a timely manner.

11. The monitoring method required for Cadmium, Chromium, Copper, Cyanide, Lead, Nickel, and Zinc in the AAR Permit is given as "24 HC". No definition of this monitoring type is given in the permit.

Recommended Action: A definitions section should be added to explain the terms stated in the permit.

The violations identified in the Violation Notice are violations of the Part 23 Rules of the Michigan Administrative Code; Part 31 of the NREPA; federal pretreatment regulations; and NPDES Permit No. MI0020257.

Cadillac WWTP must take immediate action to achieve and maintain compliance with the terms and conditions of the Part 23 Rules of the Michigan Administrative Code; Part 31 of the NREPA; federal pretreatment regulations; and NPDES Permit No. MI0020257.

Please submit a written response addressing the violations and required corrective actions identified above, including a draft copy of the modified AAR Permit, to this office by November 30, 2020.

If you have any factual information you would like us to consider regarding the violations identified in this Notice, please provide them with your written response.

We anticipate and appreciate your cooperation in resolving this matter. If you have any questions regarding this Violation Notice or if you would like to arrange a meeting to discuss it, please contact me at LoweC9@michigan.gov; 989-330-4639; or EGLE, WRD, Gaylord District Office, 2100 West M-32, Gaylord, Michigan 49735-9282.

Sincerely,

Claire Lowe

Digitally signed by: Claire Lowe
DN: CN = Claire Lowe email = LoweC9@Michigan.
gov C = US O = EGLE OU = WRD
Date: 2020.10.22 15:41:19 -04'00'

Claire Lowe
Gaylord District Office
Water Resources Division

cc: Mr. Douglas Langworthy, City of Cadillac
Ms. Terri Shattuck, EGLE